

Court No. - 40

Case :- WRIT - C No. - 40133 of 2022

Petitioner :- Smt Rajkali Yadav

Respondent :- State Of U.P. And 6 Others

Counsel for Petitioner :- Santosh Kumar Tiwari

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Ajit Singh,J.

Heard Sri Santosh Kumar Tiwari, learned counsel for the petitioner, learned Addl. Chief Standing Counsel for the State-respondent and Sri Narendra Kumar Tiwari, learned counsel for the respondent no.2.

Present writ petition is preferred with request to issue direction in the nature of mandamus directing the respondent nos. 1 to 4 to provide new electricity connection to the petitioner within some stipulated time and stay the respondent nos. 5 to 7 not to disturb electric connection in any manner in accordance with law.

Learned counsel for the petitioner submits that the petitioner is a resident of Ganesh Nagar, Muirabad, Pargana & Tehsil Sadar, District Prayagraj. She applied for a fresh electricity connection through an on-line application. He further submits that there is dispute between the mother and daughter. The petitioner being mother of the respondent no. 5 had instituted Original Suit No. 249 of 2020 (Rajkali Yadav Vs. Smt. Rekha Yadav and others) for cancellation of Will deed and registered agreement. She also prayed for an interim injunction. Learned counsel for the petitioner vehemently contended that the 6-C application is allowed in favour of the petitioner and the respondent no. 5 and 6 were restrained to disturb the peaceful possession of the petitioner (plaintiff) and the defendants were also restrained to create any third party interest in the property in dispute. In this backdrop, the petitioner applied for a fresh electricity connection in view of the provisions contained under Chapter 4.3 and 4.4 of the Uttar Pradesh Electricity Supply Code 2005, which is still pending for consideration as such request has been made for directing the respondents to decide the same expeditiously.

Sri N.K.Tiwari, learned counsel for the respondent submits that the Uttar Pradesh Electricity Supply Code 2005 is a self-contained code. In case, the petitioner's application is still pending for

consideration, definitely, the same would be addressed by the competent authority as per provisions contained under Code 2005 expeditiously.

In view of above, without expressing any opinion on the merits of the issue and considering the facts and circumstances of the case and with the consent of parties, this writ petition is disposed of finally with a direction to the Executive Engineer, U.P. Power Distribution Division, Prayagraj (respondent no.3) to look into the grievance of the petitioner and redress the same in accordance with law within a period of three weeks from the date of production of certified copy of this order before him.

Order Date :- 2.2.2023

Abhishek Gupta